

**JUSTICE (RETD.) R.M. LODHA COMMITTEE
(IN THE MATTER OF PACL LIMITED)**

**SEBI BHAVAN, PLOT NO C4-A, G BLOCK, BANDRA KURLA
COMPLEX, BANDRA EAST, MUMBAI – 400 051**

**TENDER DOCUMENT FOR E-AUCTION-SALE OF PROPERTIES
BENGALURU RURAL**

Tender Document No: JRMLC/KAR/BENRUR

September 30, 2026

DEFINITIONS

Agency	As defined in Clause 1.1
Bidder	As defined in Clause 2.5
Bid Form	As defined in Clause 2.8(i)
Bidder's Manual	As defined in Clause 2.10(v)
Committee	As defined in Clause 1.1
Company	As defined in Clause 1.1
Consortium	As defined in Clause 2.5(i)
EMD	As defined in Clause 2.7(i)
E-Auction Service Provider	As defined in Clause 1.11
Governmental Instrumentality	As defined in Clause 2.5(i)
Intimation	As defined in Clause 2.13
Lead Member	As defined in Clause 2.5(ii)
Notice of Sale	As defined in Clause 2
Order	As defined in Clause 1.1
Property(ies)	As defined in Clause 1.1
Portal	As defined in Clause 1.11
Proof of Address	As defined in Clause 2.8(i) (d)
Reserve Price	As defined in Clause 2.4
SEBI	As defined in Clause 1.1
Subsequent Orders	As defined in Clause 1.10 (ii)
Successful Bidder	As defined in Clause 2.13
Hon'ble Supreme Court	As defined in Clause 1.1
Technically Qualified Bidders	As defined in Clause 2.9 (ii)
Tender Document	As defined in Clause 1.3

1. BACKGROUND AND IMPORTANT INFORMATION

- 1.1 The Hon'ble Supreme Court of India ("**Hon'ble Supreme Court**"), *vide* an order dated February 02, 2016 passed in Civil Appeal Nos. 13301/2015 titled *Subrata Bhattacharya vs. Securities and Exchange Board of India* ("**the Order**"), directed the Securities and Exchange Board of India ("**SEBI**") to constitute a committee for disposing of the land/ properties purchased by PACL Limited ("**the Company**") so that the sale proceeds can be paid to the investors, who have invested their funds in the Company. The Hon'ble Supreme Court further directed that Hon'ble Shri Justice (Retd) R.M. Lodha, former Chief Justice of India, would be the Chairman of the said committee. The Justice (Retd) R.M. Lodha Committee (in the matter of PACL Limited), the committee so constituted by the SEBI ("**the Committee**"), has engaged the services of StockHolding Document Management Services Limited ("**Agency**") to assist the Committee in connection with the sale of the Company's properties specified in **Annexure 1** of the Tender Document ("**the Properties**"), through a tender platform on an '**as is where is, whatever there is**' basis. The Committee is not the owner of the Properties. The Committee reserves the right to take appropriate steps, including lodging criminal complaint with police/ Central Bureau of Investigation, if any person(s) are found acting in concert for the purpose of delaying or defeating the auction process as approved by the Hon'ble Supreme Court.
- 1.2 No person associated with PACL Limited in any manner whatsoever shall be permitted to bid. Bidders shall submit a declaration that they are not a 'related party' of PACL Limited and/ or its group/ associate companies and/ or its director(s), whether past or present, and/ or its promoter(s). For the purpose of this clause, 'related party' shall mean any individual or entity, including, but not limited to, a company, firm, partnership, agent, proprietorship, etc., in any manner connected directly or indirectly with and/ or controlled by PACL Limited and/ or its group/ associate companies and/ or its director(s), whether past or present, and/ or its promoter(s). In the event the Committee discovers or is of the opinion that Bidder is a 'related party' as aforesaid, the Committee shall be entitled to reject such Bidder's bid and/ or terminate/ cancel the sale and to forfeit the EMD and/ or any other monies deposited by such Bidder without notice to the Bidder.
- 1.3 The information contained in this tender document for sale of the Properties ("**the Tender Document**") or subsequently provided to Bidder(s), in documentary or any other form by or on behalf of the Committee and/ or any of its advisors, is provided to Bidder(s) on the terms and conditions set out in the Tender Document.
- 1.4 The Tender Document is neither an agreement nor an offer by the Committee to the prospective Bidders or any other person. The purpose of the Tender Document is to provide interested parties with information that may be useful to them in making their bids pursuant to the Tender Document. The Tender Document may not be appropriate for all persons and it is not possible for the Committee and its advisors to consider the investment objectives, financial situation and particular needs of each party who reads or uses the Tender Document. The assumptions, assessments, statements and information contained in the Tender Document may not be complete, accurate, adequate or correct. Each Bidder should, therefore, conduct its own investigations and analysis and should check the accuracy, adequacy, correctness, reliability and completeness of the assumptions, assessments, statements and information contained in the Tender Document and obtain independent advice from appropriate sources before submitting a bid.
- 1.5 Information provided in the Tender Document to the Bidder(s) has been collated from several sources some of which may depend upon interpretation of applicable law. The information given is not intended to be an exhaustive account of statutory requirements and should not be regarded as complete.
- 1.6 The Committee and its advisors make no representation or warranty and shall have no liability

to any person, including any Bidder under any law, statute, rules or regulations or tort, principles of restitution or unjust enrichment or otherwise for any loss, damages, cost or expense which may arise from or be incurred or suffered on account of anything contained in the Tender Document or otherwise, including the accuracy, adequacy, correctness, completeness or reliability of the Tender Document and any assessment, assumption, statement or information contained therein or deemed to form part of the Tender Document or arising in any way from participation in the tender process.

- 1.7 The Committee may, in its absolute discretion, but without being under any obligation to do so, update, amend or supplement the information, process or assumptions contained in the Tender Document.
- 1.8 The issue of the Tender Document does not imply that the Committee is bound to select a Bidder, Technically Qualified Bidder or Successful Bidder and the Committee reserves the right (without incurring any liability) to reject all or any of the Bidders, Technically Qualified Bidder or Successful Bidder or bids at its sole discretion.
- 1.9 Each Bidder shall bear all its costs associated with or relating to the preparation and submission of its bid including but not limited to preparation, copying, postage, delivery fees, expenses related to the submitting bids, expenses associated with any site visits, due diligence etc., if any, or any other costs incurred in connection with or relating to its bid including EMD. Should the Committee require any clarifications or further submissions or additional documents from the Bidder, the same shall also be provided/ submitted/ furnished by the Bidder in a timebound manner and the Bidder shall bear all costs associated with the providing/ submitting/ furnishing such further submissions or additional documents.
- 1.10 The sale of the Properties will be conducted in terms of:
 - (i) Order(s) of the Hon'ble Supreme Court;
 - (ii) Orders dated April 05, 2016, July 25, 2016 and August 08, 2024 passed by the Hon'ble Supreme Court in Civil Appeal No 13301/2015 together with any other subsequent order(s) that may be passed by the Hon'ble Supreme Court in Civil Appeal No 13301/2015 titled *Subrata Bhattacharya vs. Securities and Exchange Board of India* and other connected matters (hereinafter collectively referred to as the “**Subsequent Orders**”);
 - (iii) Provisions of applicable laws; and
 - (iv) Terms and conditions of the Tender Document/ Notice of Sale.
- 1.11 **C1 India Private Limited** has been appointed as the tender service provider (“**E-Auction Service Provider**”). The sale of the Properties will be on an ‘**as is where is, whatever there is**’ basis and shall be undertaken by the Agency for and on behalf of the Committee through the portal (“**Portal**”) provided on the website of the E-Auction Service Provider. Other details with respect to the tender process are as follows:

Type of Bid	E-Auction
Committee	Justice (Retd.) R.M. Lodha Committee (In the Matter of PACL Limited)
Agency	StockHolding Document Management Services Ltd. SHCIL House, P-51, T.T.C Industrial Area, M.I.D.C Mahape, Navi Mumbai- 400710 Email ID: pacl.eauction@stockholdingdms.com

Name of E-Auction Service Provider	C1 India Private Limited Plot No. 68, Sector 44, Gurugram- 122003, Haryana, India Contact Person: BankeAuctions Help Desk Mob: +91 7291981124 / 1125 / 1126 Support Desk Helpline No: +91-124-4302020 / 21 / 22 / 23 +91- 7291981124 / 1125 / 1126 Email ID: support@bankeauctions.com
Website of the E-Auction Service Provider	https://bankeauctions.com
Annexures	1. Annexure 1 – Description of Properties 2. Annexure 2 – Declaration by the Bidder(s) <i>Instruction: This document is required to be duly filled in and signed by the Bidder themselves (in case of the Bidder being a resident Indian citizen, non-resident Indian or sole proprietorship), the karta (in case the Bidder is a Hindu Undivided Family) and the holder of the power of attorney (in case the Bidder is a partnership firm, limited liability partnership, company, trust, society, Governmental Instrumentality or Consortium). The Bidder will then be required to take a print-out of the filled in form, sign the same and thereafter upload it on the Portal.</i> 3. Annexure 3 – Technical Terms and Conditions of Tender Process for Sale of Properties 4. Annexure 4 – Format of Sale Certificate 5. Annexure 5 – Format of Power of Attorney <i>Instruction: This power of attorney is required to be furnished only in case of the following type of Bidders:</i> (a) Partnership firm formed under the Indian Partnership Act, 1932; (b) Limited liability partnership incorporated under the Limited Liability Partnership Act, 2008 (c) Company incorporated under the Companies Act, 1956/ 2013 (d) Society registered/ set up under laws of India (e) Trust registered/ set up under laws of India (f) Governmental Instrumentality (g) Consortium whose Lead Member is an entity listed under (a) to (f) above. <i>The Bidder will upload it on the Portal.</i> 6. Annexure 6 – Format of Joint Bidding Agreement 7. Annexure 7 – Format of Power of Attorney for Lead Member <i>Instruction: This power of attorney is required to be furnished only in case of a Consortium. The Bidder will upload it on the Portal.</i> 8. Annexure 8 – Treatment of Properties Auctioned as a Single Lot

concluded.

- (iv) Technically Qualified Bidders are advised to enter their bid accordingly keeping in mind the 5 (five) minutes duration as specified above.
- (v) No complaint on the time-factor for bidding or paucity of time for bidding will be entertained by the Agency and/ or the Committee.
- (vi) In the event that only a single bid is received on the e-auction portal, the auction process shall stand annulled.

2.12 **Intimation to the Technically Qualified Bidder submitting the highest bid**

After the conclusion of the tender process, and subject to approval of the Committee, the Technically Qualified Bidder submitting the highest bid shall be informed through an email to the e-mail ID used at the time of registration, of the outcome of the tender process and that the Technically Qualified Bidder has submitted the highest bid for the tender process.

2.13 **Intimation to the Successful Bidder**

After approval of the Committee on acceptance of the highest price bid, the Technically Qualified Bidder submitting such bid will be declared as the Successful Bidder (“**Successful Bidder**”) via an e-mail (“**Intimation**”). The Successful Bidder will be required to make the balance payment as per the schedule in the Tender Document. Date of sending the e-mail confirming the decision of the Committee will be considered as the date of receipt of the Intimation.

2.14 **Deposit of the purchase price and verification of Documents**

- (i) The Successful Bidder should pay 25% (twenty five percent) of the highest bid amount within 7 (seven) working days from the date of the Intimation. It is clarified that, in case the Successful Bidder is the Technically Qualified Bidder who submitted the highest bid in the tender process, their EMD will be adjusted against the aforementioned amount.
- (ii) The balance (amounting to 75% (seventy five percent)) of the highest bid amount, along with 1% (one percent) of highest bid amount as ‘poundage fee’, shall be paid by the Successful Bidder within 15 (fifteen) days from the date of the Intimation.
- (iii) All the payments of the bid amount made by the Successful Bidder shall be made to the Committee’s bank account, (particulars of which are set out in Clause 2.7(i)), and shall be intimated to the Agency via e-mail from the email ID used by the Successful Bidder at the time of registration, immediately together with the MR No., UTR No. and a challan copy relating to the said payment. The payments of the bid amounts shall be made by the Successful Bidder from the same bank account from which he has made payment of the EMD amounts. No interest will be payable on the amounts received from the Successful Bidder.
- (iv) If any amount required to be paid by the Successful Bidder is not paid within the specified time, all amounts paid by the Successful Bidder (inclusive of the EMD) shall be liable for forfeiture.
- (v) Once the payment (including deduction of TDS by the Successful Bidder, as per applicable laws) is made, the Successful Bidder will be required to produce the originals of the documents uploaded under Clause 2.8(i) and letter issued by the bank

(through which such Bidder has paid EMD and other instalments) authenticating the identity of such Bidder along with bank account statement and original TDS certificate for verification purpose. The documents may be produced at the date, time and venue communicated to the Successful Bidder (via email) by the Agency. For the purpose of such verification, the Successful Bidder/ the authorized representative of Successful Bidder will have to be present in person during the verification process.

2.15 Default in Payment

Default of payment of the bid amounts within the stipulated time shall result in the following:

- (i) an automatic cancellation of the sale without any notice;
- (ii) all amounts paid until then by the Successful Bidder (inclusive of the EMD), shall be liable for forfeiture; and
- (iii) offering the other Technically Qualified Bidders an option to meet the highest bid, and if any Technically Qualified Bidder agrees to the said offer in writing within such period as may be specified in the offer, said Technically Qualified Bidder shall, subject to approval of the Committee, be declared as the Successful Bidder via the Intimation, whereupon the conditions stipulated in Clauses 2.13 and 2.14 shall be applicable to such Successful Bidder:

Provided that if two or more Technically Qualified Bidders agree to such offer as above, then the Technically Qualified Bidder whose bid was higher as compared to the other Technically Qualified Bidder(s) shall, subject to approval of the Committee, be declared as the Successful Bidder via the Intimation, whereupon the conditions stipulated in Clauses 2.13 and 2.14 shall be applicable to such Successful Bidder.

2.16 Confirmation of Sale

- (i) The Successful Bidder shall not have any right/ title over the Properties until a sale certificate (as per the format prescribed in **Annexure 4**) is issued in its favour by the Committee in accordance with the Order and Subsequent Orders.
- (ii) The sale certificate will be issued subject to compliance of all terms and conditions of sale, unless cancelled by the Committee for any reason, including as per applicable law.
- (iii) The sale certificate will not be issued pending operation of any stay/ injunction/ restraining order passed by the Hon'ble Supreme Court/ any other court having jurisdiction against such issuance.
- (iv) Any request for cancellation of the sale for any or all the Properties or return of the deposit, either in part or full, will not be entertained.
- (v) Representations/ objections from the Successful Bidder would not be entertained at any time.

2.17 Payment of Stamp Duty, etc.

- (i) The sale attracts stamp duty, registration charges, etc. as per relevant laws.
- (ii) All the applicable charges including stamp duty, registration charges, conveyance, government taxes such as Goods and Services Tax etc. as per relevant laws, with respect to the sale of Properties shall be borne by the Successful Bidder for transfer of

the Properties in his/ her name.

- (iii) The payment of all statutory/ non-statutory dues, taxes, rates, assessments, charges, fees, etc., owed by the Company to anybody in respect of the Properties shall be the sole responsibility of Successful Bidder only. No interest will be payable on the amounts received from the Successful Bidder.

2.18 Sale Certificate

- (i) The sale certificate will be issued by the Committee only in accordance with the Order and Subsequent Orders. Subject to sub-clause (iii) below, the sale certificate will be issued in the name of the Successful Bidder specified in the Bid Form. Any request for inclusion/ substitution of name, other than those mentioned in the Bid Form, in the sale certificate **will not** be entertained.
- (ii) The sale certificate will be issued at the date, time and venue to be intimated by the Agency to the Successful Bidder (via email) **only after entire price bid amount is deposited by the Successful Bidder.**
- (iii) In case any of the Successful Bidder is a partnership firm/ Consortium, the sale certificate for each individual property in the Lot (as defined in **Annexure 1**) may be issued in favour of any or more of the partners /members of the Consortium at the request of the partnership firm/ Consortium. It is clarified that partners of the partnership firm/ Consortium shall be treated as on the date of submitting the bid and no partner/ member added after the date of submitting the bid will be entitled to the said benefit.
- (iv) Sale certificate shall be collected in person by the Successful Bidder or through an authorized person. The Successful Bidder or the authorised representative shall be required to carry the required documents such as ID proofs, authorisation letter (if applicable), copy of mail, etc. along with them.

2.19 Return of EMD

The EMD of the unsuccessful Bidders will be refunded within a reasonable time after the declaration of the Successful Bidder for a particular tender or cancellation/ annulment of the tender, whichever is earlier, subject to there being no event of forfeiture of EMD. The EMD will be refunded, without any interest, to the same bank account from which the EMD was received and the unsuccessful Bidders shall be intimated via their e-mail ID.

2.20 Stay/ Cancellation of the Sale

- (i) In case of stay/ injunction/ restraining order passed by the Hon'ble Supreme Court/ any other court having jurisdiction, the tender process may either be deferred or cancelled for sale of any or all the Properties and persons participating in the sale shall have no right to claim damages, compensation or cost for such deferment or cancellation.
- (ii) Default in payment of 25% (twenty five percent) of the bid amount by the Successful Bidder within the time period stipulated in Clause 3.2 will result in cancellation of sale for any or all the Properties including forfeiture of the EMD amount.
- (iii) In case the Successful Bidder has paid the EMD amount and 25% (twenty five percent) of the bid amount (inclusive of the EMD amount) but fails to pay the remaining balance of 75% (seventy five percent) of the bid amount or fails to pay 1% (one percent) of highest bid amount as 'poundage fee' within the time period stipulated in Clause 3.2,